



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00004-01 / 521 Southwest Drive Zone Change
Date: February 14, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 2/14/2022
- Public Services Committee 2/23/2022
- Second reading 2/28/2022
- Public Services Committee 3/8/2022
- Third and final reading 3/14/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their February 7, 2022 meeting and recommended the Governing Body approve this application by a unanimous vote.

The Planning Commission Staff report is attached and has not been changed.

Related Items:

521 Southwest Drive Annexation (UDC-22-00004)

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY MU MIXED USE TO AG AGRICULTURAL FOR LAND LOCATED EAST OF SOUTHWEST DRIVE, SOUTH OF I-80."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on February 7, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a portion of Tract 1, H & B Tracts, Laramie County, Wyoming, more particularly described as follows:

beginning at a point being the northeast corner of said Tract 1, monumented with a 3" brass cap WYDOT right-of-way marker; thence S.03 deg 38' 03" W., along the east line of said Tract 1, a distance of 483.00 feet; thence S.80 deg 21' 10" W., a distance of 1533.88 feet; thence N.00 deg 06' 34" E., a distance of 37.81 feet; thence S.79 deg 29' 47" W., a distance of 444.72 feet to a point on the west line of said Tract 1, monumented with a survey cap stamped "DMH PE & LS 558"; thence N.14 deg 33' 35" E., along said west line, a distance of 464.54' to the northwest corner of said Tract 1, monumented with a 3" brass cap WYDOT right-of-way marker; thence N.73 deg 12' 59" E, along the north line of said Tract 1, a distance of 334.52' to a 3" brass cap WYDOT right-of-way marker; thence continuing along said north line, along a curve, concave to the southeast, with a radius of 5455.39 feet, curve delta 16 deg 27' 00", arc length of 1566.28' and chord bearing of N.81 deg 17' 58" E., a distance of 1560.91' to the POB.

is hereby changed to AG Agricultural.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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CITY OF CHEYENNE PLANNING COMMISSION

FEBRUARY 7, 2022

STAFF REPORT

FILE: UDC-22-00004-01: 521 Southwest Drive Zone Change
("Stansbury Farms")

REQUEST: A request to rezone approximately 48.6 acres of land from County MU Mixed Use to AG Agricultural

LOCATION: East of Southwest Drive, South of I-80

OWNER: Tru Grit Land Development LLC

ZONING: County MU Mixed Use

FUTURE LAND USE: Mixed-use Residential

PURPOSE: To give land a City zone in concert with annexation

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Tract 1 (less 22.38 acres), H and B Tracts, Laramie County, Wyoming to AG Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval, with the following condition:

1. Correct the “proposed zoning” label on the zone change map.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County MU Mixed Use to AG Agricultural for 48.6 acres. The land is undeveloped. The impetus behind the proposed zone change is to give land a City zone in concert with an annexation.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Residential	County MU	Rural Residential
North	Mixed-use Residential	LI	Undeveloped
South	Mixed-use Residential	AR, MUB, LI	Undeveloped, Low-density Residential
East	Mixed-use Employment	LI	Undeveloped, Limited Industrial
West	Open Space, Mixed-use Residential, Public and Quasai-public	PUD, LI, AR	Undeveloped, Animal Shelter, Low-density Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary and some existing infrastructure exists to the west. There are also opportunities to tie into infrastructure. Development will require infrastructure extensions and improvements.

The Future Land Use Designation for this property is Mixed-use Residential on the Future Land Use Map. The optimal zoning for the proposed future land use designation is MUR Mixed-use Residential, although a variety of residential and lower-intensity commercial zones may also be appropriate.

While the proposed AG zone is not consistent with the land uses identified by the Future Land Use Map, the AG zone is intended to be used as a 'holding zone' while development options are finalized, and such zoning would not have an adverse effect on the potential for the property to develop in accordance with the plans and policies of the comprehensive plan in the future.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The existing zoning to the southwest is AR, while to the east, west, and north there is LI zoning, and to the south is MUB zoning. There is also PUD zoning to the west. The property to the west zoned LI is the animal shelter. Properties zoned LI to the east are across railroad tracks, and the area zoned LI to the north is undeveloped. The areas zoned PUD and MUB are also undeveloped. The AG zone is compatible with the areas zoned AR, and, as a holding zone, is compatible with the other undeveloped areas surrounding it.

The future land uses anticipated by the Comprehensive Plan for this area anticipate higher-intensity, urban-style uses. While the proposed AG zone is not consistent with the Future Land Use Map, the AG zone is intended to be able to be used as a 'holding zone' until future development occurs.

The proposed zone change **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current County MU zone allows a wide variety of uses; however, most of those uses would require water and sewer service, and the South Cheyenne District is unable to service this parcel. Therefore annexation to the City and the establishment of City zoning would be required to establish the types of uses typically considered by the current County zone. While AG zoning within the City only allows low density residential and lower-intensity agricultural uses, it is also appropriate as a holding zone until more urban-style development is ready to occur.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The standards of Article 4 have limited applicability to the proposed AG zone, as AG zoned land is highly limited in allowed uses and is intended to have limited infrastructure improvements, if

any. By zoning the land as AG, the property would likely remain undeveloped until future zoning, subdivision, and other development actions occur. The standards of Article 4 would be required to be met with those future development actions.

The proposed zone change **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The AG zone is intended to develop with primarily agricultural uses or to leave land in a natural state. This zone prohibits most of the typical urban-style uses. The AG zone is applicable to areas where significant natural lands or open spaces are to be protected, or areas designated Agriculture/Rural or Rural Residential by the Future Land Use Map. The AG zone is also applicable as an interim or holding zone for areas that may be further developed in the long term, but where minimal development activity in the interim is acceptable and will not prematurely establish development patterns.

This property is anticipated to develop with urban-style uses in the future. However, the AG zone is applicable as a holding zone and is intended to leave the land in an undeveloped state – which would allow future rezoning and development of the property when development is appropriate.

The proposed zone change **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The applicant is seeking the proposed zone change in concert with an annexation. While the subject property is anticipated to develop with urban-style uses in the future, establishing specific development patterns at this time may be premature. Interim agricultural style uses or very-low density residential uses may be appropriate until such time as the land is ready for urban-style development.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the clarity of the application. The application, the neighbor letter, and discussions with the applicant all point to a request for AG zoning; however, the zone change map states "AR". The map should be corrected for clarity.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The zoning map amendment application is proposed in concert with an annexation. While the property is anticipated to develop with urban-style uses in the future, the AG zone is applicable as a holding zone. Staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications (**Staff Recommendation**).
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

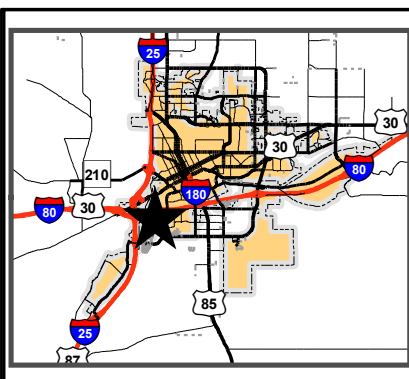
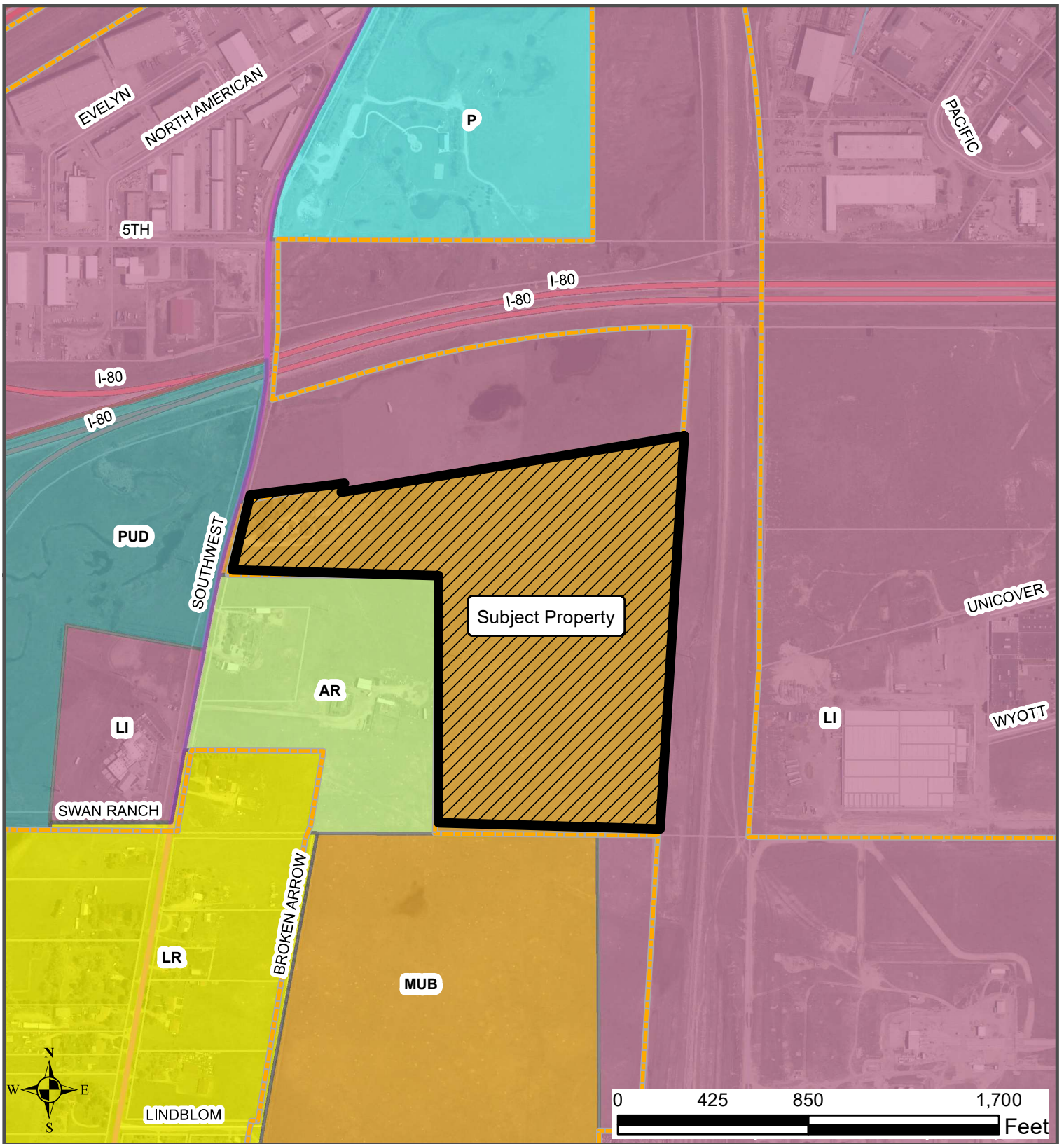
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County MU to AG.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

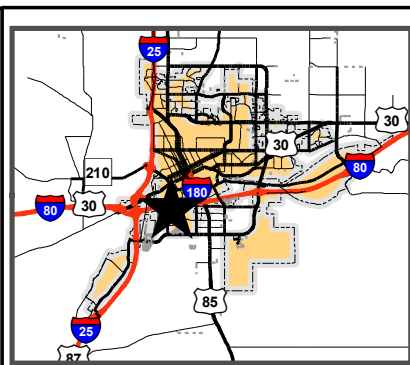
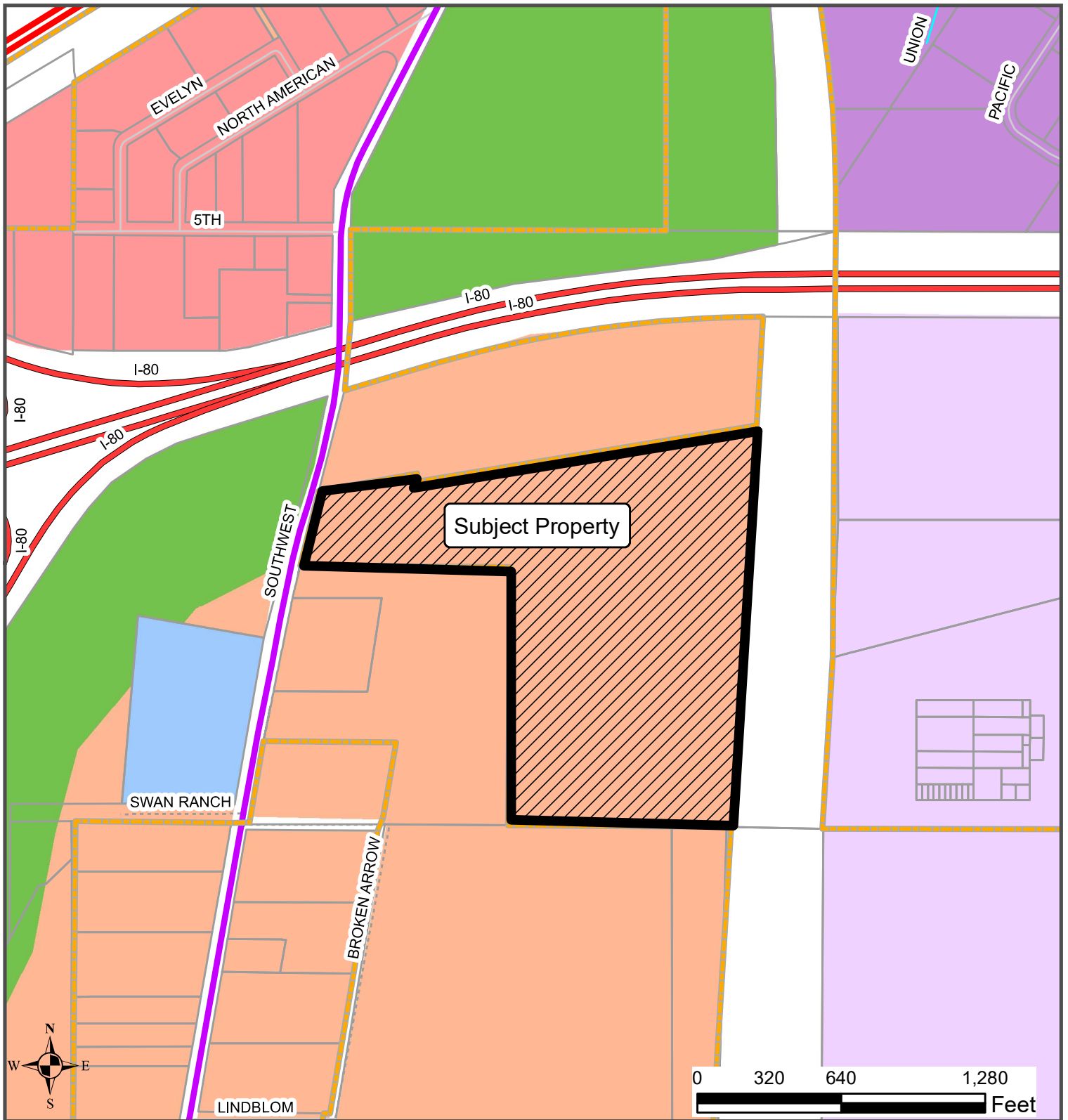


Attachment 1: Zoning Map UDC-22-00004-01

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map UDC-22-00004-01

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Ownership		
Private		

Planning and Development: Zoning Map Amendment Application

Submission date: **12 January 2022, 9:35AM**

Receipt number: **24**

Related form version: **10**

General Information

Applicant Name: **Tru-Grit Land Development, Inc.**

Applicant Address: **140 Walterscheid Blvd**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82007**

Applicant Phone: **307-778-0400**

Applicant Email: **Ernste@mhbwy.com**

Representative Name: **Shane Boyle**

Representative Address: **1807 Capitol Ave**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82001**

Representative Phone: **970-698-6046**

Representative Email: **shane.boyle@civilworxeng.com**

Owner Name: **Tru-Grit Land Development, Inc.**

Owner Address: **140 Walterscheid Blvd**

Owner City:	Cheyenne
Owner State:	WY
Owner Zip Code:	82007
Owner Phone:	307-778-0400
Owner Email:	Ernste@mhbwy.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Letter of Authorization - Signed.pdf
Project Location (Street Address or General Location):	521 Southwest Drive
Assessor's Parcel ID number(s)	13671220400400
Total Project Area	48.59 Acres / 2,116,580 SF
Existing Zoning	Other: MU
Requested Zoning	AG - Agricultural

Application-Specific Questions

Written Statement	Annex and rezone the unincorporated parcel at 521 Southwest Drive. No proposed uses at this time.
Zoning Map	Stansbury Farms Annexation Zoning Map.pdf
Notification Letter	Neighborhood Notice - Zoning.docx 300 ft mailing list.docx
Supporting Documents / Information	Vic Map.jpg

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

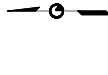
Name of signatory: Shane Boyle

A handwritten signature in black ink, appearing to read "Shane Boyle". The signature is fluid and cursive, with the first name "Shane" and the last name "Boyle" clearly distinguishable.

[Link to signature](#)

Please enter an email address for an email receipt.

shane.boyle@civilworxeng.com

[illegible]